

Terms of Use

Please read these terms of use carefully. By accessing or using this internet-based mobile and/or website based platform, you agree to be bound by the terms described herein and all terms incorporated by reference. If you do not agree to all of these terms, do not use this internet-based platform.

1. What is Davaindia?

The domain name www.davaindia.com, an internet-based portal, and the Davaindia mobile application are operated by Zota Healthcare Ltd Retail Limited (hereinafter referred to as "Zota Healthcare" or "We" or "Our" or "Us" or "Company"), a company duly incorporated under the provisions of the Companies Act, 2013, having its registered office at Zota House, 2/896 Hira Modi Street, Sagrampura, Surat, Gujarat 395002, with GSTIN 24AAACZ1196M1ZZ ("We" "Us" "Our"). The domain name and the mobile application are collectively referred to as the "Website."

Your access or use of the Website, transactions on the Website, and use of Services (as defined below) hosted or managed remotely through the Website are governed by the following terms and conditions (hereinafter referred to as the "Terms of Use"), including the applicable policies incorporated herein by reference. These Terms of Use constitute a legal and binding contract between you (hereinafter referred to as "You" or "Your" or the "User") on one part and Davaindia Health Mart Limited on the other part and has been prepared in accordance with requirements under applicable data protection laws.

By accessing, browsing, or transacting on the Website, or availing any Services, you signify your agreement to be bound by these Terms of Use. Further, by impliedly or expressly accepting these Terms of Use, you also accept and agree to be bound by Our policies, including but not limited to Our Privacy Policy, and other rules, guidelines, policies, terms, and conditions relevant under applicable laws in India and other jurisdictions. These shall be deemed to be incorporated into and considered as part of these Terms of Use. However, if you navigate away from the Website to a third-party website, you may be subject to alternative terms and conditions of use and privacy policies, as may be specified on such a website. In such an event, the terms and conditions of use and privacy policy applicable to that website will govern your use of that website.

The Website is a platform that facilitates: (i) online purchase of pharmaceutical products sold directly by the Company; (ii) online medical consultancy services/ second opinion by doctors ("Medical Experts") offered by the Company; (iii) and health and wellness-related information ("Information Services") to the Users accessing the Website. The services of doctor consultations, the sale of pharmaceutical products by the Company, and the Information Services are collectively referred to as the "Services."

The arrangement between You and Us shall be governed in accordance with these Terms of Use. The Services are made available to such natural persons who have agreed to use the Website after due registration, as determined by Us from time to time. The Services are offered to You through various modes, which may include discount coupons and vouchers redeemable for goods/services offered by the Company. To facilitate communication, We may send You promotional content, including but not limited to emails, notifications, and messages.

We reserve the right to change or modify these Terms of Use or any policy or guideline of the Website, including the Privacy Policy, at any time and in Our sole discretion. Any changes or modifications will be effective immediately upon posting the revisions on the Website. . You agree that it is your responsibility to review these Terms of Use periodically. Your continued use of the Website after any such changes constitutes your acceptance of the revised Terms of Use. Your continued use of the Website after such revisions constitutes your acceptance of the revised Terms of Use and applicable policies.

As a condition of your use of the Website, you must be 18 years of age or older to use or visit the Website in any manner, including availing of the Services. By visiting the Website or accepting these Terms of Use, you represent and warrant to Us that you are 18 years of age or older and have the right, authority, capacity to use the Website and agree to abide by these Terms of Use.

We authorize You to view and access the content available on the Website solely for the purposes of availing the Services, such as visiting, using, ordering, receiving, delivering and communicating only as per these Terms of Use. The contents on the Website including information, text, graphics, images, logos, button icons, software code, design, and the collection, arrangement and assembly of content, contains third party service providers' content ("Third Party Content") as well as in-house content provided by Us, including without limitation, text, copy, audio, video, photographs, illustrations, graphics and other visuals ("Davaindia Content") (collectively, "Content"). The Davaindia Content is the Our property and is protected under copyright, trademark and other applicable law(s). You shall not modify the Davaindia Content or reproduce, display, publicly perform, distribute, or otherwise use the Davaindia Content in any way for any public or commercial purpose or for personal gains.

2. Eligibility

2.1. For the purposes of availing the Services through the Website, you must register in accordance with the procedure established by Us. During registration, We may collect the following personal information from you:

- Name
- User ID
- Email address

- Address (including country and ZIP/postal code)
- Gender
- Age
- Phone number
- Password chosen by the User
- Valid financial account information
- Other details as You may volunteer.

2.2. Registration or use/access of the Website is only available to natural persons who are 'competent to contract' under the Indian Contract Act, 1872. Persons such as minors or undischarged insolvents are not eligible. By registering, accessing, or using the Website, you accept these Terms of Use and represent and warrant to Us that you are competent to contract under the Contract Act and have the right, authority and capacity to use the Website and agree to and abide by these Terms of Use.

2.3. A registered ID can only be used by the person whose details were provided during registration. However, a registered user, being also a parent or legal guardian of a person 'incompetent to contract' such as minors or persons with unsound mind, would be permitted to access and use the Website for the purposes of procuring the Services, on behalf of such persons in compliance with applicable laws. Organizations, companies, and businesses may not register or use the Website through individual members.

2.4. You agree and acknowledge to (i) create only 1 (one) account; (ii) provide accurate, truthful, current and complete information when creating Your account and in all Your dealings through the Website and in availing the Services; (iii) maintain and promptly update Your account information as and when required; (iv) maintain the security of Your account by not sharing Your password with others and restricting access to Your account and Your computer only; (v) promptly notify Us if You discover or otherwise suspect any security breaches relating to Your account with Us; (vi) take responsibility for all the activities that occur under Your account and accept all risk of unauthorized access thereto; (vii) Any communication from Us shall be sent only to your registered mobile number and/or email address or such other contact number or email address that you may designate and communicate to Us and (viii) You shall be solely responsible to update your registered mobile number and/or email address on the Website in the event of any change.

2.5. You will be solely responsible for the information given during Medical Expert consultations. Based on the information provided by you during the Medical Expert Consultations, e-prescriptions may be generated, You acknowledge that such prescriptions may not be

considered a valid prescription under applicable laws and may not be used for dispensation of medication by any pharmacist.

2.6. Dispensing of the drugs for prescription-required medicines will be based on the prescription uploaded by you. You acknowledge that We nor the pharmacist dispensing medicines will not be responsible for facilitation of medicine orders based on prescriptions uploaded by You (whether original or scanned). We only act as an aggregator and assume no responsibility and/ or liability in relation to the dispensation of the medicines, which shall at all times be at Your sole risk.

2.7. We reserve the right to temporarily or permanently suspend Users and restrict access to the Website in case of violations of these Terms of Use or any other reason.

3. Use of Services and the Website

3.1. Prescription Drugs:

- The Website is a platform that can be used by the Users to purchase various drugs and pharmaceutical products. In accordance with applicable laws, certain pharmaceuticals requires a valid medical prescription issued by a medical expert/ doctor to be verified by a registered pharmacist for the purpose of dispensing such medicine ("Prescription Drugs").
- In order to purchase Prescription Drugs from our platform, You are required to upload a scanned copy of the original valid prescription on the Website. The order will not be processed and forwarded to the concerned pharmacy by Us until it receives a copy of a valid prescription issued as per applicable laws.
- The pharmacist will verify the prescription forwarded by You and in case of any discrepancy in the prescription uploaded by You, the pharmacist will raise a Doctor consultation on your behalf to generate a valid prescription to complete the order processing.
- Prescriptions shall be retained by Us in accordance with timelines mentioned under applicable laws and may be made available to regulatory authorities upon demand.
- All medicines are dispensed in compliance with the Drugs and Cosmetics Act, 1940 and Drugs and Cosmetics Rules, 1945. We do not process requests for Schedule X and habit forming drugs.

4. Davaindia Content Principles

As part of our services, Davaindia provides informational content ("DavaIndia Content") through the website and app. This content is targeted at the general public for informational purposes only and does not constitute professional medical advice, diagnosis, treatment, or recommendations of any kind.

Davaindia Content is based on the following principles:

- **Relevance and Originality:** Davaindia Content is original and relevant to the general public. Topics are carefully selected to address current health and wellness trends, seasonal health concerns, and the latest updates in medicine and healthcare. All intellectual property rights arising from Davaindia Content shall remain Our sole and exclusive property, no User shall copy and/or reproduce the same without Our consent.
- **Selection by Experts:** Topics are chosen by a board of qualified experts, including certified medical professionals, pharmacists, and healthcare specialists. Decisions are informed by current health news, new drug launches, peer-reviewed medical journals (e.g., The Lancet, Diabetes Care, etc.), and public health awareness campaigns.
- **Fairness and Accuracy:** We uphold principles of fairness, accuracy, objectivity, and independent reporting. Editorial staff ensure content is objective, balanced, and accurate.
- **Emerging Health Topics:** Content includes trending health topics, alternative medicines (e.g., Ayurveda, Homeopathy), and nutritional trends (e.g., benefits of herbal supplements).
- **Conflict of Interest Disclosure:** Any potential conflicts of interest with service providers are fully disclosed.

Editorial Board Members. The editorial team comprises certified medical professionals who review and approve all content to ensure accuracy and relevance.

5. Terms for Use of Online Doctor Consultancy Services:

5.1. We are an online health platform who provide various health-related products and services to users, including access to health-related information and resources. Whenever We refer to "Your physician," "Your doctor," or "Your healthcare provider" on the Website, We mean your personal doctor with whom you have an actual doctor-patient relationship. The Medical Experts on Our Website are not considered "Your" physician or healthcare provider.

5.2. In cases where the submitted prescription is found to be invalid, incomplete, or expired, You may initiate a doctor consultation to facilitate order processing. This consultation is arranged solely for the purpose of validating your order and is based on the details of your current order and your previously submitted prescription. The generated prescription will be reviewed by a Medical Expert to ensure compliance with regulatory guidelines. This process ensures that all orders are fulfilled responsibly and in the best interest of your health and safety.

NO DOCTOR-PATIENT RELATIONSHIP

- We do not replace your relationship with your physician or healthcare provider. The information provided on the Website should not be relied upon as a substitute for professional medical advice, evaluation, or care from your physician or another qualified healthcare provider.

- You acknowledge that the Medical Experts empanelled with Us are independent contractors and thereby We have an independent contractor relationship with such Medical Experts and therefore in no event can We be directly or vicariously liable for any advice or medical consultancy or any loss arising therefrom that the Medical Experts may provide to You or You may avail as part of the Services. The Medical Experts are solely responsible for any advice provided to You and validity of any e-prescriptions issued to You.

- Although some content , that is provided to You on the Website (including Information provided in direct response to Your questions or postings) may be provided by individuals in the medical profession, the provision of such Information does not create a doctor/medical professional-patient relationship, but is provided to inform You on various medical conditions, medical diagnosis and treatment and it does not constitute a direct medical diagnosis, treatment or prescription. Everything on the Website should be used for information purposes only.

- We aim to support your health decisions by providing reliable health information. However, it is your responsibility to make decisions in connection with the advice of your doctor or other healthcare providers. Our Website is not a place for practicing medicine, and consultations provided by Medical Experts are not for diagnosis or treatment.

- Even if Your personal doctor is on Our Website, personal medical advice, treatment or diagnosis are not permitted through the Website, and by using the Website You agree not to solicit these or use any information as if it were personal advice, treatment, or diagnosis. Whenever You want personal medical advice, treatment, or diagnosis, You should contact Your physician or professional healthcare provider and see them in person.

- We do not endorse or recommend any specific medical expert(s), products, or procedures mentioned on the Website. Reliance on any information provided is at your own risk. In case of a medical emergency, contact your nearest doctor or hospital.

- The Services are not for use in medical emergencies or for critical health situations requiring prompt medical attention. The Services are not intended to be real-time and may not be the best solution when a face-to-face consultation is a must and therefore, We strongly discourage any delay in seeking advice from Your doctor on account of something that You may have heard/viewed on the Website.

- The opinions, statements, answers and tele-consultations (collectively “Consultation”) provided by the Medical Experts through the Website are solely the individual and independent opinions and statements of such Medical Experts and do not reflect the opinions of Our company, its affiliates or any other organizations or institutions to which such Medical Expert or such specialist or professional is affiliated or provides services. We do not recommend or endorse any specific tests, physicians, products, procedures, opinions, or other information that may be mentioned on the Website.

- The inclusion of Medical Experts on the Website does not imply recommendation or endorsement of such specialists and/ or Medical Experts nor is such information intended as a

tool for verifying the credentials, qualifications, or abilities of any specialists and/ or Medical Experts contained therein. All information is provided on an "as-is" basis, and We disclaim all warranties, including implied warranties of merchantability or fitness for a particular purpose.

- We do not accept responsibility for any medical, legal, or financial events related to the use of the Website's Services.
- We make no warranty that the Services will meet your requirements or that they will be uninterrupted, secure, or error-free. We are not responsible for transmission errors or data corruption.
- The Website is for personal use only, and the Services should not be used for commercial purposes.
- You may not use the Website for illegal purposes, and you must not access Our networks or systems in a way that could damage, disable, or interfere with the Website's services or other users' enjoyment.

5.3. Risks of Using Our Services:

- While the Website strives to provide access to the best medical information, Medical Experts will not physically examine you. They may lack critical details of your medical history and may not be able to give a complete diagnosis. The services provided differ from traditional medical diagnosis and treatment.
- By using the Website, you acknowledge that the information provided may be limited and provisional.
- It is not intended to replace face-to-face visits with your physician.
- If there is a difference of opinion between Our Medical Experts and your physician, you are responsible for deciding whether to proceed with online or offline consultations or treatments. Any misinformation provided will render the opinion void.
- In some cases, Medical Experts may request additional information, or may refuse to provide a consultation if the transmitted information is inadequate. In some instances, the query may not be answerable without a physical examination.
- By using the Services, you acknowledge the risks described above and agree to abide by these Terms of Use and Privacy Policy.

6. Additional service terms

The following additional terms shall apply to certain services and features offered by Davaindia through its website, mobile application, customer support channels, admin system, and associated service partners. By accessing or using any such feature, the customer agrees to be

bound by these terms in addition to the general Terms and Conditions, Privacy Policy, Shipping and Delivery Policy, and Return, Refund and Cancellation Policy of Davaindia.

1. Admin assisted order placement

1.1 Assisted order support

In certain cases, a customer may face difficulty in placing an order on the Davaindia website or mobile application due to technical issues, usability concerns, or any other support-related reason. In such cases, Davaindia customer support or an authorised representative may assist the customer in placing the order through an internal admin panel or support system on behalf of the customer.

Davaindia operates as a technology platform that facilitates the listing, ordering and delivery of products by partner licensed pharmacies. The sale, dispensing and supply of medicines shall be undertaken solely by the concerned licensed pharmacy.

1.2 Conditions for assisted order placement

Admin assisted order placement may be offered only where:

- a. the customer is unable to place the order due to technical or operational issues on the platform;
- b. the customer has expressly requested assistance from Davaindia customer support; and
- c. the relevant order details have been clearly communicated and confirmed by the customer before the order is created.

Davaindia reserves the right to refuse assisted order placement if adequate information is not available or where such assistance is not operationally feasible. For medicines and regulated healthcare products, admin assisted order placement shall at all times remain subject to applicable prescription, pharmacist verification, and other legal requirements.

Davaindia and its partner pharmacies reserve the right to review, validate, reject, or seek clarification in relation to any prescription submitted by the customer. Orders for prescription medicines may be refused, cancelled, or modified if the prescription is invalid, illegible, expired, incomplete, suspected to be fraudulent, or otherwise non-compliant with applicable law or standards.

1.3 Order confirmation

Before placing an order through the admin system, the support team may confirm the following details with the customer:

- a. medicines or products requested

- b. quantity of each item
- c. delivery address or store pickup preference, if applicable
- d. delivery mode, including express or standard, where available
- e. applicable discounts, offers, cashback points, or membership benefits
- f. prescription details (if applicable)
- g. final payable amount

Once these details are confirmed by the customer, the order may be created in the system based on such confirmation. In the case of prescription medicines, Davaindia and its partner pharmacies shall dispense medicines only against a valid prescription.

1.4 Payment process

After the assisted order is created, a secure payment link may be sent to the customer through SMS, WhatsApp, email, or any other official Davaindia communication channel. The order shall be processed only after successful payment confirmation.

Davaindia shall not process an admin assisted order without successful payment confirmation unless a separate payment method is expressly made available on the platform.

1.5 Order processing

Upon successful payment:

- a. the order shall be treated as confirmed in the system
- b. the designated store shall process the order
- c. the applicable delivery or pickup timelines shall be governed by the relevant Shipping and Delivery Policy, serviceabilityoperational availability, and any product-specific handling, storage, prescription and delivery requirements.

1.6 Changes and cancellation

Once payment has been successfully completed, the order may not be modified. Any cancellation, refund, or return request shall be governed strictly by the applicable Return, Refund and Cancellation Policy and product specific restrictions, including those applicable to medicines and healthcare products.

1.7 Customer responsibility

The customer shall remain solely responsible for verifying the correctness of the product names, quantities, delivery address, pickup selection, and final amount before confirmation. Davaindia shall not be responsible for incorrect order placement where the customer has confirmed inaccurate or incomplete details during the assisted ordering process.

While Davaindia makes reasonable efforts to accurately capture the order details communicated by the customer, the customer acknowledges that assisted ordering is dependent on information provided by the customer. Davaindia shall not be responsible for any incorrect order details resulting from customer communication errors.

2. Offline pickup from store

2.1 Pickup facility

Davaindia may allow customers to place orders online and collect eligible products from a selected Davaindia store or designated pickup point, subject to stock availability, product eligibility, prescription validation where required, and operational feasibility.

2.2 Pickup process

Where store pickup is selected:

- a. the customer shall select the preferred pickup store from the options displayed on the platform
- b. the order shall be prepared only after confirmation of the order and successful payment, where applicable
- c. the customer may be required to provide order confirmation details, OTP, registered mobile number, government identification, valid prescription, or any other verification document at the time of pickup
- d. pickup must be completed within the time period communicated to the customer

2.3 Non collection

If the customer fails to collect the order within the applicable pickup timeline, Davaindia may cancel the order, restock the products, or treat the order as abandoned, subject to product category, legal requirements, and operational considerations. Any refund, if applicable, shall be processed in accordance with the Return, Refund and Cancellation Policy.

2.4 Restricted products

Certain medicines or healthcare products may require prescription validation, pharmacist review, or additional compliance verification before release from the store. Davaindia reserves the right to refuse handover in the absence of valid documentation or legal eligibility.

3. Delivery charges based on tiered cart values

3.1 Delivery fee structure

Davaindia may levy delivery charges based on order value, cart slabs, delivery distance, service level, product category, location, membership benefits, or such other operational criteria as may be determined from time to time.

3.2 Display at checkout

The applicable delivery fee, if any, shall be displayed at checkout before payment. Delivery fees may vary by city, zone, store, serviceability, promotional campaign, or order value.

3.3 Revision rights

Davaindia reserves the right to revise delivery fee slabs, minimum order thresholds, free delivery criteria, and serviceability terms at any time without prior notice.

3.4 Promotional waiver

In certain cases, Davaindia may offer free delivery or reduced delivery charges based on promotional campaigns, membership eligibility, cart value, customer segment, or other commercial criteria. Such benefits may be modified, withdrawn, or restricted at Davaindia's sole discretion.

4. Third party doctor consultation services

4.1 Consultation through third party panel

Davaindia may facilitate access to doctor consultation services through independent third-party doctors, telemedicine service providers, or healthcare consultation partners.

The consultation services and platform features are not intended for emergency medical situations. In the event of a medical emergency, customers should immediately contact emergency services or visit the nearest hospital or qualified healthcare provider.

4.2 Role of Davaindia

Davaindia acts only as a facilitator for access to such third party services and does not itself provide any medical advice, diagnosis, treatment, prescription, or clinical opinion unless specifically stated otherwise.

4.3 No medical liability

All consultation related medical advice, diagnosis, treatment recommendation, and prescription generation shall be the sole responsibility of the concerned doctor or third party consultation provider. To the extent permitted by law, Davaindia shall not be liable for:

- a. the quality, correctness, or suitability of medical advice
- b. the availability, scheduling, cancellation, or interruption of consultation services
- c. delays, technical failures, or service interruptions attributable to the third party consultation provider
- d. any consequence arising from the customer's reliance on the medical advice, diagnosis, or treatment provided by such third party

Customers are advised to use their own judgment and consult a qualified medical practitioner wherever necessary.

4.4 Prescription linked orders

Any medicine order based on a prescription generated through a third-party consultation service shall remain subject to stock availability, legal validation, prescription scrutiny, serviceability, and internal fulfilment rules of Davaindia.

4.5 Third party terms and privacy

Use of third party consultation services may also be subject to the terms of use, privacy terms, consent requirements, and service conditions of the concerned provider. Customers are advised to review such terms before availing the consultation.

5. Cashback points and redemption

5.1 Award of cashback points

Davaindia may issue cashback points, loyalty credits, promotional rewards, wallet value, or similar benefits on eligible transactions, campaigns, or membership plans.

5.2 Redemption conditions

Such cashback points or rewards may be redeemed only in accordance with the terms displayed on the platform at the time of earning or redemption. Davaindia may impose conditions relating to minimum order value, maximum redemption limit, eligible products, eligible users, validity period, and combination with other offers.

5.3 No cash conversion

Unless expressly stated otherwise, cashback points or promotional rewards shall not have cash value, shall not be transferable, and shall not be redeemable outside the Davaindia platform.

5.4 Reversal and expiry

Cashback points may expire if not used within the applicable validity period. In the case of cancelled, failed, fraudulent, refunded, or reversed transactions, the associated cashback or reward points may be withdrawn, reversed, or forfeited.

6. General operational rights

Davaindia reserves the right to determine feature eligibility, serviceability, product availability, applicable delivery charges, pickup eligibility, membership applicability, order acceptance, consultation facilitation, and promotional benefit usage at its sole discretion and in accordance with applicable law. Availability of services may vary by city, store, stock status, prescription requirement, technical readiness, business rules and applicable laws.

7. Limitation of liability

To the fullest extent permitted under applicable law, Davaindia shall not be liable for any indirect, incidental, consequential, special, punitive, reliance or exemplary damages arising out of or in connection with the use of assisted order placement, store pickup, delivery fee slabs, third party consultation services, membership features, or cashback benefits.

Product descriptions, images, health information, dosage details, and related content displayed on the platform are provided for informational purposes only. Such information does not constitute medical advice and should not be relied upon as a substitute for professional medical consultation. This section shall survive termination of this agreement and the termination of your use of the services or the platform.

8. Right to update

Davaindia reserves the right to revise, amend, modify, or update these terms at any time. Continued use of the platform or any of the relevant features after such update shall constitute acceptance of the revised terms.

[AL1]Client to insert link.

7. Other Terms

Your Profile, Collection, Use, Storage, and Transfer of Personal Information:

- Your account profile with Us is created to store a record of your consultations and personal health information online, including health conditions, allergies, and medications.
- Any information provided during a web consultation or obtained through the use of the services becomes part of your record with Us. You agree to provide accurate information to help Us serve you better, periodically review, and update such information as necessary. We reserve the right to maintain, delete, or destroy communications and materials posted or uploaded to the Website according to its internal retention policies. You may be contacted via email to review information for Our records or services. Please ensure that your email ID is valid and updated when necessary.
- The terms "personal information" and "sensitive personal data or information" are defined under the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Information) Rules, 2011 ("SPI Rules"), as detailed in Our Privacy Policy.
- We are not responsible for the authenticity of the personal information or sensitive personal data provided by users.
- If a User provides any information that is untrue, inaccurate, not current or incomplete (or becomes untrue, inaccurate, not current or incomplete), or We have reasonable grounds to suspect that such information is untrue, inaccurate, not current or incomplete, We shall have the right to suspend or terminate such account at Our sole discretion.
- By accepting these Terms of Use and by registering on the Website, You consent to be contacted by Us and/or by Our third party service providers, including the pharmacies, delivery agents, Medical Experts and advertisers ("Third Party Service Providers"). You further consent to receive Calls, emails and messages (SMS) notifications and information from Us and from any Third Party Service Providers including for promotions, discount and/or other service delivery related issues.

8. Payment, Fees, and Taxes

7.1. Registration and access to the information provided on the Website is free. We do not charge any fee for browsing or purchasing products through the Website. Payments for products purchased directly from Us must be made through available online payment options.

7.2. Each user is responsible for payment of taxes, legal compliances, and other statutory registrations related to their purchase. We are not responsible for any taxes except for its own income tax.

7.3. Security of Payment Methods

- We use integrated third party APIs for secure transactions. Payments can be made through wallets such as Paytm, AmazonPay, PhonePe, and others. All debit/credit card payments are processed securely. Cash on delivery is not offered.
- Return, Refund, Cancellation, and Shipping Charges. We offer returns and refunds on products and services ordered through the Website, subject to the terms outlined in Our Return and Refund Policy. The Return and Refund Policy is an integral part of these Terms of Use, and users are encouraged to review it carefully

9. Privacy Policy and Data Protection

The collection and use of personal information are governed by Our Privacy Policy available on Our Website. By using the Website, you consent to the collection, use, and transfer of your information as outlined in Our Privacy Policy.

10. Covenants:

9.1. Covenanters for the purposes of these Terms of Use shall include the Users and the Third Party Service Providers. Each Covenanter undertakes that it shall not do any act or post, display, upload, modify, publish, transmit, update or share any information that -

(i) belongs to another person and to which the such Covenanter does not have any right;

(ii) is grossly harmful, insulting or harassing on the basis of gender, blasphemous, defamatory, obscene, pornographic, paedophilic, libellous, invasive of another's privacy including bodily privacy, hateful, racially or ethnically objectionable, disparaging, relating or encouraging money laundering or gambling, or otherwise inconsistent with or contrary to the laws in force;

(iii) infringes any patent, trademark, copyright or other proprietary rights;

(iv) violates any law for the time being in force;

(v) impersonates another person;

(vi) is harmful to child;

(vii) deceives or misleads the addressee about the origin of such messages or knowingly and intentionally communicates any information that is patently false or misleading in nature but may reasonably be perceived as a fact;

(viii) contains software viruses or any other computer code, files or programs designed to interrupt, destroy or limit the functionality of any computer resource;

(ix) is prohibited under applicable law(s) for the time being in force;

(x) is patently false and untrue, and is written or published in any form, with the intent to mislead or harass a person, entity or agency for financial gain or to cause any injury to any person; and

(xi) threatens the unity, integrity, defense, security or sovereignty of India, friendly relations with foreign states, or public order or causes incitement to the commission of any cognizable offence or prevents investigation of any offence or is insulting any other nation.

You are also prohibited from:

(i) violating or attempting to violate the integrity or security of the Website or any Davaindia Content;

(ii) transmitting any information (including job posts, messages and hyperlinks) on or through the Website that is disruptive or competitive to the provision of Services provided by Us;

(iii) intentionally submitting on the Website any incomplete, false or inaccurate information;

(iv) making any unsolicited communications to other Covenanters;

(v) using any engine, software, tool, agent or other device or mechanism (such as spiders, robots, avatars or intelligent agents) to navigate or search the Website; and

(vi) attempting to decipher, decompile, disassemble or reverse engineer any part of the Website;

(vii) framing or hotlinking or deeplinking any Davaindia Content.

9.2. We shall be entitled to disable such information that is in contravention of this Clause 4 or any provisions of these Terms of Use. We shall be entitled to preserve such information and associated records for at least 180 (one hundred and eighty) days or for such longer period as may be required for production to court or governmental authorities for investigation purposes.

9.3.In case of non-compliance with any applicable law(s), rules or regulations, or these Terms of Use or the Privacy Policy by a Covenanter, We have the right to immediately terminate the access or usage rights of the Covenanter to the Services and/or Website and to remove noncompliant information.

11. Liability

- We shall not be responsible or liable in any manner to the Users or any Third Party Service Providers (collectively referred to as the "Other Parties") for any losses, damage, injuries or expenses incurred by Other Parties as a result of any disclosures made by Us, where Other

Parties have consented to the making of such disclosures by Us. If the Other Parties had revoked such consent under the terms of the Privacy Policy, then We shall not be responsible or liable in any manner to the Other Parties for any losses, damage, injuries or expenses incurred by the Other Parties as a result of any disclosures made by Us prior to its actual receipt of such revocation.

- The Other Parties shall not hold Us responsible or liable in any way for any disclosures by Us under Rule 6 of the Information Technology (Reasonable Security Practices and Procedures and the Sensitive Personal Data or Information) Rules, 2011.
- The Services provided by Us or any of its licensors or providers or Third Party Service Providers are provided 'as is', as available, and without any warranties or conditions (express or implied, including the implied warranties of merchantability, accuracy, fitness for a particular purpose, title and non-infringement, arising by statute or otherwise in law or from a course of dealing or usage or trade). We do not provide or make any representations, warranties or guarantees, express or implied about the Website or the Services. The Website may be linked to the website of third parties, affiliates and business partners. We have no control over, and are not liable or responsible for content, accuracy, validity, reliability, quality of such websites or made available by/through the Website.
- Inclusion of any link on the Website does not imply that We endorses the linked website. Other Parties may use the links and these services at their own risk and subject to the terms of those websites.
- We shall not be responsible for the mishaps/missed services due to no service/no show from the Other Parties;
- We shall not be responsible for any error in any of the services being provided by the Third Party Service Providers.
- We assume no responsibility, and shall not be liable for, any damages to, or viruses that may infect Other Parties' equipment on account of the Other Parties' access to, use of, or browsing the Website or the downloading of any material, data, text, images, video content, or audio content from the Website. If any of the Other Party is dissatisfied with the Website, the sole remedy of such Other Party(s) is to discontinue using the Website.
- To the maximum extent permitted by applicable law(s), We, Our affiliates, independent contractors, service providers, consultants, licensors, agents, and representatives, and each of their respective directors, officers or employees ("Protected Entities"), shall not be liable for any direct, indirect, special, incidental, punitive, exemplary or consequential damages, or any other damages of any kind, arising from, or directly or indirectly related to, (i) the use of, or the inability to use, the Website or the content, materials and functions related thereto; (ii) User's provision of information via the Website; even if such Protected Entity has been advised of the possibility of such damages.

- In no event shall the Protected Entities be liable for, or in connection with, (i) the provision of, or failure to provide, all or any products or service by a Third Party Service Provider to any User; or (ii) any comments or feedback given by any of the Users in relation to the goods or services provided by any Third Party Service Providers; or (ii) any content posted, transmitted, exchanged or received by or on behalf of any User, Third Party Service Providers or other person on or through the Website.
- We hereby disclaim any liability in relation to the validity of the medical advice provided by the Medical Experts and the validity and legality of the e-prescription for dispensation of medicines and conduct of diagnostic tests.
- All liabilities arising out of any wrong diagnosis of medical condition by the Medical Experts and/or arising from the e-prescription will be of the concerned Medical Expert. Further, all liabilities arising out of any wrong diagnosis report by the Third Party Labs and/or arising from the wrong dispensation of the Pharmaceutical Goods and Services will be of the concerned pharmacies as the case may be.
- The Users may share their previous medical history during interaction with the Medical Experts. The Users undertake to share such information at their own risk. We reserves the right to retain such information for the purpose of providing Services to the Users.
- With respect to the Consultation Services, after selection of the type of treatment viz. Homeopathy, Allopathy or Ayurveda along with the specification of the disease by the patient, We will decide the Medical Expert to whom the query should be directed based on the information shared by the User. However, in no event shall the Protected Entities be held liable for the losses attributable to such decision making and in no event shall the Protected Entities be liable for any consultation provided and/or e-prescription issued by the Medical Expert by using the interface of online medical consultancy.
- The Users acknowledge that the Protected Entities merely act in the capacity of facilitators between the Other Parties by providing a platform for them to interact and transact. In no event shall the Protected Entities be held liable for any of the losses attributable to Services offered through the Website.
- In no event shall the total aggregate liability of the Protected Entities to any Other Parties for all damages, losses, and causes of action (whether in contract or tort, including, but not limited to negligence, strict liability, product liability or otherwise) arising from these Terms of Use or any Other Parties' use of the Website exceed an aggregate amount of INR 1000/- (Indian Rupees One Thousand only). We accept no liability for any errors or omissions on behalf of the Other Parties.
- In no event shall the Protected Entities be liable for failure on the part of the Users or Third Party Service Providers to provide agreed services or to make himself/herself available at the appointed time, cancellation or rescheduling of appointments. In no event shall the Protected

Entities be liable for any comments or feedback given by any of the Users in relation to the services provided by a Third Party Service Providers.

12. Indemnity

The Covenanters agree to defend, indemnify and hold harmless the Protected Entities (including Us), and Our independent contractors, service providers, consultants, licensors, agents, and representatives, and each of their respective directors, officers, and employees, from and against any and all claims, losses, liability, damages, and/or costs (including, but not limited to, reasonable attorney fees and costs) arising from or related to (a) Covenanters access to or use of Website; (b) Covenanters violation of these Terms of Use or any applicable law(s); (c) Covenanters violation of any rights of another person/entity, including infringement of their intellectual property rights; or (d) Covenanters conduct in connection with the Website.

13. Modification of Website

We reserve the right to modify or discontinue, temporarily or permanently, the Website or any features or portions thereof without prior notice. Other Parties agree that We will not be liable for any modification, suspension, or discontinuance of the Website or any other part thereof.

14. Intellectual property rights

All the intellectual property used on the Website except those which have been identified as the intellectual properties of the Other Parties shall remain Our the exclusive property. The You and the Other Parties agree not to circumvent, disable or otherwise interfere with security-related features of the Website or features that prevent or restrict use or copying of any materials or enforce limitations on use of the Website or the materials therein. The materials on the Website or otherwise may not be modified, copied, reproduced, distributed, republished, downloaded, displayed, sold, compiled, posted or transmitted in any form or by any means, including but not limited to, electronic, mechanical, photocopying, recording or other means.

15. Compliance of Applicable Law

14.1. While communicating/ transacting with each other through the Website, the Other Parties shall at all times ensure full compliance with the applicable provisions of the Contract Act, IT Act, IG Guidelines, Drugs Act read with the Drug Rules, Drugs and Magic Act, The National Medical Commission Act, 2019, Pharmacy Act, Consumer Protection Act, 2019, SPI Rules as well as all other laws for the time being in force ("Captioned Laws"), and ensure due payment of applicable taxes. They must specifically ensure that they are in no way purchasing Pharmaceutical Goods and Services or Prescription Drugs without a valid prescription, which

are prohibited under the Drugs Act (read with the Drugs Rules) as well as the other applicable laws for the time being in force.

14.2. The Users must also ensure that the prescription uploaded on the Website or emailed to Us for processing the order for Prescription Drugs is a valid prescription duly obtained from a registered medical practitioner. The Users acknowledge and accept that they shall bear all costs/ liability/ damages, caused to the Third Party Service Providers or to Us, as a result of any dispensation of Prescription Drugs by the Third Party Service Providers owing to the non-compliance by the User in this regard.

16. Termination

Parties for the Purpose of these Terms of Use shall collectively mean the Other Parties and Us. The provisions of these Terms of Use shall continue to apply until terminated by either of the Party as set for below:

15.1. In case of Other Parties wanting to terminate these Terms of Use, Other Parties may do so by: (i) not accessing the Website; or (ii) closing their accounts for all of the Services that they use.

15.2. We reserve the right to, at any time, and with or without notice, terminate these Terms of Use against each of the Users or the Third Party Service Providers or the Other Parties as a whole, if there is:

(i) breach any of applicable law(s), including but not limited to the Captioned Laws or the provisions of these Terms of Use or the terms of the Privacy Policy or any other terms, conditions, or policies that may be applicable to the Other Parties from time to time (or have acted in a manner that clearly shows that Other Party(s) do not intend to, or are unable to, comply with the same); or

(ii) If We are unable to verify or authenticate any information provided to Us by Other Party(s); or

(iii) If We believes, in Our sole discretion, that Other Party(s) actions may cause legal liability for Us (or any of its affiliates, independent contractors, service providers, consultants, licensors, agents, and representatives) or are contrary to the interests of the Website; or

(iv) If We are required to do so by law; or

(v) if Other Party(s) fail to provide (or after providing such consent, later revoke) the consents necessary or desirable for Us to provide the Services to the Other Party(s); or

(vi) The provision of the Services to the Other Party(s), or to the general public, is in Our opinion, no longer commercially viable; or

(vii) We have elected to discontinue, with or without reason, access to the Website or the Services (or any part thereof).

15.3. We may also terminate or suspend (temporarily or permanently) all or a portion of Other Party(s) account or access to the Services, with or without reason. Except as may be set forth in any of the terms applicable to a particular Service, termination of Other Party(s) account may include: (i) removal of access to all offerings within the Website or with respect to the Services; and (ii) barring Other Party(s) from further use or access of the Website or of any of the Services.

15.4. Once terminated or suspended (temporarily or permanently), Other Party(s) may not continue to use the Website under the same account, a different account or re-register under a new account.

15.5. Upon termination of these Terms of Use, We shall have no obligation to maintain or provide any of Other Party(s) data and may thereafter, unless legally prohibited, delete all of Other Party(s) data in its systems or otherwise in its possession or under its control, including but not limited to Other Party(s) personal information, log-in ID and password, order details (including any prescriptions uploaded) and all related information, files and materials associated with or inside Other Party(s) account (or any part thereof).

15.6. We reserve the right, at its sole discretion, to pursue all of its legal remedies, including but not limited to deletion of the Other Party(s) content from the Website with or without ability to access the Website and the other Services, upon any breach by the Other Party(s) of these Terms of Use or if We are unable to verify or authenticate any information the Other Party(s) submits to Us, or if the Other Party(s) fail to provide (or after providing such consent, later revokes) the consents necessary or desirable for Us to provide the Services to the Other Party(s).

15.7. The right to terminate/suspend the account is in addition to, and without prejudice to, Our right to initiate action against the Other Party(s), in accordance with applicable law.

17. Force Majeure

Other Parties accept and acknowledge that We shall not be liable for any loss or damage caused to the User as a result of delay or default or deficiency or failure in the Services as a result of any natural disasters, fire, riots, civil disturbances, actions or decrees of governmental bodies, communication line failures (which are not caused due to Our fault), or any other delay or default or deficiency or failure which arises from causes beyond Our reasonable control ("Force Majeure Event"). In the event of any Force Majeure Event arising, We, depending on whose performance has been impacted under the Terms of Use, shall immediately give notice to the Other Party(s) of the facts which constitute the Force Majeure Event. Further, delivery time periods specified on Website shall always be nonbinding under all circumstances as

delivery is dependent on multiple factors that can assume uncertainty at any moment for unforeseen reasons beyond Company's control.

18. Governing Law and Dispute Resolution

These Terms of Use and any contractual obligation between the Parties will be governed by the laws of India, without reference to the conflict of laws principles. Any legal action or proceeding related to Other Party(s) access to, or use of, the Website or these Terms of Use shall be subject to the exclusive jurisdiction of the courts at Surat, Gujarat. All disputes will be subject to arbitration at Surat, Gujarat in English by a sole arbitrator appointed by Us under the Arbitration and Conciliation Act, 1996, as amended from time to time.

19. Survival

Even after termination, certain obligations mentioned under Covenants, Liability, Indemnity, Intellectual Property, Dispute Resolution will continue and survive termination.

20. Severability

If any provision of these Terms of Use is deemed invalid, unlawful, void or for any other reason unenforceable, then that provision shall be deemed severable from these Terms of Use and shall not affect the validity and enforceability of any of the remaining provisions.

21. Waiver

No provision of these Terms of Use shall be deemed to be waived and no breach excused, unless such waiver or consent shall be in writing and signed by Us. Any consent by Us to, or a waiver by Us of any breach by Other Parties, whether expressed or implied, shall not constitute consent to, waiver of, or excuse for any other different or subsequent breach.

22. Headings

The headings and subheadings herein are included for convenience and identification only and are not intended to describe, interpret, define or limit the scope, extent or intent of these Terms of Use.

23. Contact Information

If any Other Party(s) has any grievance, comment, question or suggestion regarding any of Our Services, please contact Our customer service at care@davaindia.com. If any Other Party(s) has any questions concerning Us, the Website, these Terms of Use, or anything related to any of the foregoing, We can be reached at the following email address - care@davaindia.com or via the contact information available from the following: Contact us. Please also refer to Our grievance redressal policy available at <https://www.davaindia.com/grievance-redressal-policy>.

23. Account Deletion

Deleting an account is a permanent action and cannot be reversed. In case you want to use Our services again, you will need to create a new account which will have no previous order history. In order to delete your account, please download the app and follow these steps: Go to Need Help → Profile → How do I delete my account → Account deletion. If any Other Party(s) has any grievance, comment, question or suggestion regarding any of Our Services, please contact Our customer service at care@davaindia.com.